District Court of the First Circuit — THE JUDICIARY • STATE OF HAWAI'I
1111 ALAKEA STREET • KAUIKEAOULI HALE • HONOLULU, HAWAI'I 96813-2897

Electronically Filed
FIRST CIRCUIT
1RC191003776
12-JUL-2019
09:24 AM
Dkt. 6 ROS

CIVIL NO. 1 (RC) (SC) (SS) - 19-1-3776

THIS DOCUMENT IS ☐ DENIED ☐ STRICKEN (Correct and return with this sheet.)

( ) Approved court form required
( ) Civil Number missing/incorrect
( ) Signature of filing Party/Attorney missing
( ) Filing Party/Attorney's name/address missing
( ) Certificate of Service incomplete/not attached/denied
( ) Insufficient number of copies
( ) Untimely/Unnecessary filing
( ) Caption incomplete/incorrect
( ) Leave of Court required
( ) Court date missing/incorrect
( ) Division incorrect/missing

JUDGMENT
( ) No disposition of all parties
( ) Notice of Entry of Judgment required
( ) Postage, addressed envelope missing

DEFAULT PROCEDURES
File: ( ) Ex Parte Motion for Default Judgment
( ) Declaration insufficient/unsupported by exhibits
( ) Declaration not based on direct personal knowledge
( ) Non-Hearing Motion For Default Judgment

ATTORNEY'S FEES/OTHER COSTS
( ) Itemize attorney's activities and hours
( ) Insufficient documentation/description/breakdown to award other costs

MOTION FOR ISSUANCE OF GARNISHEE SUMMONS AFTER JUDGMENT
( ) Garnishee Information sheet missing/outdated
( ) Non-Conclusory Declaration incomplete/insufficient
( ) Notice to Employer form missing
( ) "Current Amount Due" missing/incorrect
( ) Exhibit B not attached
( ) Judgment not attached

JUDGMENT/WRIT OF POSSESSION
( ) Writ of Possession Effective Date missing
( ) Missing/incorrect premises address

RETURN OF SERVICE
( ) Not Signed by serving officer/person
( ) Date/Address of service missing
( ) Title of document served missing
( ) Name of party served missing/incorrect
( ) Page 2 blank/incorrect/incomplete
( ) Mileage recoverable .40 cents per mile

OTHER
NAME OF PARTY SERVED HAS NO RELATION TO THE CASE-
COUNTERCLAIM OR THIRD PARTY COMPLAINT

Thank you,

Judge HG/TR

For more information or assistance, please visit the District Court Ho'okele Service Center on the 3rd Floor or call (808) 538-5629.

RETURN OF SERVICE; ACKNOWLEDGMENT OF SERVICE

TWO-SIDED FORM

Form #1DC47

FILED
DISTRICT COURT OF
THE FIRST CIRCUIT
2019 JUL 12 A 9:24
CLERK

IN THE DISTRICT COURT OF THE FIRST CIRCUIT
HONOLULU **DIVISION**
STATE OF HAWAI'I

Plaintiff(s)
ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors

Defendant(s)
NIKODEM PIKOR

Reserved for Court Use
Court Date:

Civil No. 1RC19-1-03776

Requestor(s)/Requestor(s)' Attorney (Name, Attorney Number, Firm Name (if applicable), Address, Telephone and Facsimile Numbers)
Joseph Ryan, Jr. 8607
Joseph Ryan, JR. AAL, LLLC, PO BOX 562, Waimanalo, HI 96795
ph/fax 808 259 6870

DOCUMENT(S) SERVED: ANSWER AND COUNTERCLAIM; THIRD PARTY COMPLAINT AND SUMMONS

NAME OF PARTY SERVED: W.E. DENISON	ADDRESS WHERE SERVED: 3660 Waialae Ave. Ste 307 Honolulu, HI 96816-3295
DATE SERVED: 7/11/19	MILEAGE: $
TIME OF SERVICE: 12:51 PM	NUMBER OF MILES TRAVELED:

☑ **FULL OR** ☐ **PARTIAL RETURN OF SERVICE**

I have read this Return of Service, know the contents and verify that the statements are true to my personal knowledge and belief. **I DECLARE UNDER PENALTY OF PERJURY UNDER THE LAWS OF THE STATE OF HAWAI'I THAT THE FOLLOWING IS TRUE AND CORRECT:**

I, ☐ Deputy Sheriff, or ☐ Police Officer of the State of Hawai'i, or ☑ person who is not a party and is not less than 18 years of age, do certify that I received a certified copy of the documents listed above and that I served same on the Party Served above on the Date and Time of Service and at the Address listed above within the State of Hawai'i as listed on the reverse:

(continued on reverse side)

Signature:	3660 WAIALAE AVE #307 (808) 733-7400
Print/Type Name: W.E. DENISON	Print/Type Address, Telephone and Facsimile Numbers:

ROS.2XX (Amended 4/18/97)v

SEE REVERSE SIDE

I certify that this is a full, true, and correct copy of the original on file in this office.

Clerk, District Court of the above Circuit, State of Hawai'i

CommonLook® 508 Certified

☐ **FULL OR** ☐ **PARTIAL RETURN OF SERVICE (continued)**

☐ **PERSONAL:** By delivering to and leaving with _____, personally.

☐ **SUBSTITUTE:** [District Court Rules of Civil Procedure 4(d)(1)(i)] After due and diligent search and inquiry, I served the named party through _____

_____,

a person of suitable age and discretion then residing at said party's usual place of abode, since the party could not be found.

☐ **SUBSTITUTE:** [District Court Rules of Civil Procedure 4(d)(1)(ii)] I served the named party through _____,

_____ authorized agent to receive service of process for said party.

☑ **BUSINESS/CORPORATION/GOVERNMENTAL ENTITY:** I served (name of business/corporation/entity) _____

W. E. DENISON CORP.

through W E DENISON, who is the (position/title)

Pres & CEO

and who is the authorized agent to accept service for said Business/Corporation/Governmental Entity.

☐ **GARNISHMENT:** I served (Name of Garnishee) _____

_____

through _____, who is the (position/title)

_____

and who is authorized to accept service for the above-named garnishee.

☐ **NOT FOUND:** After due and diligent search and inquiry, I am unable to find the party named above.

☐ **Special Circumstances:**

ACKNOWLEDGMENT OF SERVICE

Signature of Person served:

Print/Type Name: WE DENISON

In accordance with the **Americans with Disabilities Act** if you require an accommodation for your disability, please contact the District Court Administration Office at PHONE NO. 538-5121, FAX 538-5233, or TTY 539-4853 at least ten (10) working days in advance of your hearing or appointment date. For Civil related matters, please call 538-5151.

RETURN OF SERVICE MUST BE FILED NO LATER THAN 24 HOURS (EXCLUDING SATURDAY, SUNDAY AND LEGAL HOLIDAYS) PRIOR TO THE RETURN DATE AT 1111 ALAKEA STREET, CIVIL DIVISION, THIRD FLOOR, HONOLULU, HAWAI'I 96813.